

1.

CASE #	CASE NAME	HEARING NAME
CVPS2501589	AMIRIANFAR vs BADDOUR, INDIVIDUALLY AND	MOTION FOR SUMMARY ADJUDICATION

Tentative Ruling:

The tentative ruling that was posted for the original hearing date of September 17, 2026 remains the court's tentative ruling.

This matter is already set for oral argument; thus, parties need not request again.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2103653	CHILDERS vs GOLDEN AUTO GROUP, INC.	MOTION TO AMEND JUDGMENT

Tentative Ruling:

The hearing on the motion is continued to October 20, 2026, at 8:30 a.m., to consider the opposition. Moving party may file a reply by no later than 5 court days before the continued hearing. Other than the reply, no further briefing is permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402526	JUAREZ vs WETTER	MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF JAN BISSELL; REQUEST FOR CONTINUED DEPOSITION; AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

Requests 1 and 2 (Document Identification and Employee Identity)

If the answer sought is subject to discovery, the court shall order that the answer be given on the resumption of the deposition. (CCP § 2025.480(i).)

Defendants concede the parties met and conferred and agreed pre-filing to reopen the deposition so Plaintiff may ask both questions as posed, namely (1) which document requests Bissell believed his produced documents satisfied and (2) the identity of the employee involved in the workplace investigation. (Empey Decl. ¶ 25.) Both questions seek non-privileged factual information within the scope of CCP § 2017.010. (*Stewart*,

supra, 87 Cal.App.4th at 1013.) The Court therefore grants as to Requests 1 and 2. Bissell shall answer both questions as originally posed at the resumed deposition.

Requests 3, 4, 5, and 6 (Content of Attorney-Client Communications)

The attorney-client privilege bars discovery of the communication irrespective of whether it includes unprivileged material. (*Costco Wholesale Corp.*, *supra*, 47 Cal.4th at 734.) Instructions not to answer are proper only where the question seeks privileged information. (*Stewart*, *supra*, 87 Cal.App.4th at 1014.)

The four disputed questions each expressly seek the content of what counsel told the deponent or the District to do:

- Q. Okay. So your legal counsel told you that you should not provide that email?
- Q. Okay. Did you not provide witness testimony to support these allegations based on the advice of counsel?
- Q. Did counsel tell you that you did not have to bring any witnesses to support the allegations mounted against Mr. Juarez?
- Q. And they [legal counsel] told you not to make any efforts?

(Pl.'s Separate Statement 4:24, 5:22–23, 6:15–16, 7:10.)

Each question asks Bissell to disclose confidential attorney-client communications rather than his own independent knowledge or acts. That content is squarely privileged. (*Costco Wholesale Corp.*, *supra*, 47 Cal.4th at 734.) Counsel's instructions not to answer were therefore proper. (*Stewart*, *supra*, 87 Cal.App.4th at 1014.) Plaintiff remains free at the resumed deposition to inquire into the underlying historical facts (what Bissell personally did, knew, or decided) so long as the question does not seek the substance of privileged communications. **The Court therefore denies as to Requests 3, 4, 5, and 6.**

At-Issue Waiver

"Merely revealing that one has consulted an attorney is not enough to waive the privilege." (*S. Cal. Gas Co.*, *supra*, 50 Cal.3d at 46.) At-issue waiver requires that the client has put the privileged communication directly in issue and that disclosure is essential for a fair adjudication of the action. (*Id.*) Waiver does not occur where the substance of the protected communication is not itself tendered in issue but instead simply represents one of several forms of indirect evidence. (*Id.* at 41.)

Defendants have expressly disclaimed reliance on advice of counsel as a defense, both in their Answer, which pleads 23 affirmative defenses, none of which invokes advice of counsel or good faith reliance on counsel, and in verified written discovery responses confirming they will not offer evidence or argument at trial that they acted reasonably or in good faith because of advice from an attorney. (Defs.' Answer pp. 3–7; Empey Decl. ¶ 9.) Bissell's isolated deposition references to acting on counsel's advice reveal only

the fact of consultation, not its substance, and Defendants have not tendered the content of any privileged communication as an affirmative defense. Under the authorities cited above, no at-issue waiver has occurred. **The Court therefore denies Plaintiff's request for an at-issue waiver ruling.**

Advice of Counsel Preclusion Order

A party's verified disclaimer of a defense may be enforced by an order precluding later reliance on that defense, consistent with the policy of holding a party to a stipulation that it will not rely on the defense so as to avoid implied waiver of the underlying privileged communications. (*Transamerica Title Ins. v. Sup. Ct.* (1987) 188 Cal.App.3d 1047, 1051–53.) Because Defendants have unequivocally disclaimed reliance on advice of counsel and Plaintiff structured meet and confer, deposition strategy, and this motion around that disclaimer, Defendants shall be held to it going forward.

Defendants may not offer evidence, argument, or testimony at trial, on dispositive motion, or in further discovery invoking advice of counsel as a justification, explanation, or defense for the challenged conduct alleged in the SAC, including the censure proceedings, the investigation underlying the censure, the March 2, 2024 community fair, or any other conduct forming the basis of Plaintiff's claims. **The Court therefore grants Plaintiff's alternative request for a preclusion order as set forth above.**

Request 7 (Follow Up on Employee Identity)

Where a deposition is reopened, permissible follow up examination is limited to matters within the scope of ordinary discovery and does not extend to privileged content. (CCP § 2025.480; *Costco Wholesale Corp.*, *supra*, 47 Cal.4th at 734.)

Because Request 2 (identity of the former District employee who supplied information used in the censure) will be answered, Plaintiff may conduct reasonable factual follow up concerning that employee's non-privileged communications with Bissell. Broader follow up seeking counsel's advice or work product remains protected. **The court grants as limited above.**

Request 8 (Thirteen New Categories of Investigation Questions)

CCP § 2025.480(a) permits a motion to compel an answer only where a deponent fails to answer a question that was in fact asked. (CCP § 2025.480(a).)

Request 8 does not identify specific questions asked and not answered. It "seeks completion of the examination, allegation by allegation, concerning the investigation and factual sources supporting the censure" across thirteen broad categories, several with subcategories. (Pl.'s Separate Statement 12:18–13:24.) Defendants correctly note that section 2025.480(a) does not authorize compulsion of unknown questions that were never asked. Plaintiff's counsel closed the deposition without pursuing these topics. The

statute does not authorize reopening the deposition to ask questions counsel elected not to ask when the witness was available. **The Court denies as to Request 8.**

Deposition Conduct Orders

Objections must be specific and timely stated on the record. (CCP § 2025.460(b).) Unless the deposition is suspended for a protective order, it proceeds subject to the objection. Instructions not to answer are proper only to protect privileged information; counsel may not assume the role of judge and direct the witness not to answer on non-privilege grounds. (*Stewart, supra*, 87 Cal.App.4th at 1011.)

Plaintiff seeks orders regulating instructions not to answer, speaking objections, witness coaching, and “don’t guess” admonishments at the continued deposition. Defendants have already agreed to make no “don’t guess” admonishments going forward. The remaining relief simply restates the governing statutory and case law standards and is appropriate to enter as a prospective order.

At the continued deposition (1) defense counsel shall not instruct the witness not to answer any question except to protect information subject to a legally recognized privilege, (2) objections shall be stated specifically and concisely on the record without argumentative commentary, suggested answers, or coaching, and the witness shall answer subject to any non-privilege objection, and (3) counsel shall not admonish the witness not to guess or speculate while a question is pending. **The court grants.**

Additional Deposition Time and Costs

The Court shall allow additional deposition time beyond the seven-hour limit if needed to fairly examine the deponent or if any circumstance impedes or delays the examination. (CCP § 2025.290(a).)

The rulings above reopen the deposition only as to the two conceded questions (Requests 1 and 2), reasonable factual follow up on the former employee’s non-privileged communications (Request 7), and any reformulated non-privileged fact questions Plaintiff elects to pose. That is a narrow scope. A general reopening tied to Request 8 is not warranted.

Plaintiff should be allotted one additional hour of deposition time beyond the seven-hour limit, to be used exclusively for the reopened topics. **This is granted in part. The court denies Plaintiff’s request that the continued deposition be conducted at Defendants’ expense.** Consistent with the Court’s findings on sanctions below, each side shall bear its own fees and costs associated with the continued deposition.

Sanctions

The Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer, unless it finds that the

one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2025.480(j).) Plaintiff seeks sanctions against Defendants in the amount of \$5,925.00. Defendants prevailed on Requests 3 through 6 and Request 8, and their pre-filing concessions resolved Requests 1 and 2. Defendants also proposed an Informal Discovery Conference to narrow the dispute, which Plaintiff declined. Defendants' opposition was substantially justified.

Defendants cross-seek sanctions against Plaintiff in the amount of \$2,775.00. Plaintiff prevailed in obtaining the reopening of Requests 1, 2, and 7, deposition conduct orders, additional time, and an advice of counsel preclusion order. The motion was not frivolous, and Plaintiff acted with substantial justification.

Additionally, because the motion was resolved on mixed grounds with pre-filing concessions on multiple issues, other circumstances would make imposition of sanctions on either side unjust. **The court denies both parties' requests for sanctions.**

In sum, the motion is granted in part, denied in part as provided herein. The Plaintiff's request for sanctions is denied, as is Defendants' request for sanctions.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507434	JOHNSON vs FCA US LLC	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

A motion for judgment on the pleadings has the same function as a general demurrer but is made after the time to file a demurrer has expired. (CCP § 438(c).) Thus, a motion for judgment on the pleadings attacks only defects disclosed on the face of the pleading or by matters that can be judicially noticed. (*Cloud v. Northrop Gruman Corp.* (1998) 67 Cal.App.4th 995, 999.) A defendant may move for judgment on the pleadings where "[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant." (CCP §438(c)(1)(B)(ii).)

Applicable Statutes of Limitations

FCA argues the 1st, 2nd, 4th, and 6th causes of action are time-barred (see CCP §§ 338, 871.20, 871.21.)

CCP § 871.21

CCP §§ 871.20, *et. seq.* was enacted on 9/29/24 and became effective as of 1/1/25. This chapter provides for pre-suit notice (effective 4/1/25, delayed to 7/1/25 by SB 26), streamlined discovery, mandatory mediation if the manufacturer responds, and strict